

Privacy in Australian law is affected and protected in limited ways by common law in Australia and a range of federal, state and territorial laws, as well as administrative arrangements. There is no absolute right to privacy in Australian law and there is no clearly recognised tort of invasion of privacy or similar remedy available to people who feel their privacy has been violated.

Australian courts have historically been reluctant to recognise a standalone cause of action for invasion of privacy, most notably in *Australian Broadcasting Corporation v Lenah Game Meats Pty Ltd*, where the High Court declined to confirm the existence of such a tort, while leaving open the possibility that it might develop in the future. As a result, individuals seeking redress for privacy intrusions must generally rely on indirect causes of action, such as breach of confidence, defamation, trespass, nuisance, or intentional infliction of harm, none of which are designed primarily to protect privacy interests.

In 2025, Australian privacy law underwent a significant reform with the introduction of a statutory cause of action for serious invasions of privacy added under the Privacy Act 1988(cth). For the first time, individuals in Australia gained a direct legal right to sue another person or organisation for serious invasions of their privacy, without needing to rely solely on indirect causes of action such as breach of confidence or equitable remedies.

What is privacy?

There is no statutory definition of privacy in Australia. The Australian Law Reform Commission (ALRC) was given a reference to review Australian privacy law in 2006. During that review it considered the definition of privacy in 2007 in its Discussion paper 72. In it, the ALRC found there is no "precise definition of universal application" of privacy; instead it conducted the inquiry considering the contextual use of the term "privacy".

In reaching that conclusion, the ALRC began by considering the concept of privacy:

"It has been suggested that privacy can be divided into some separate, but related concepts: Information privacy, which involves the establishment of rules governing the collection and handling of personal data such as credit information, and medical and government records. It is also known as "data protection";

Bodily privacy, which concerns the protection of people's physical selves against invasive procedures such as genetic tests, drug testing and cavity searches;

Privacy of communications, which covers the security and privacy of mail, telephones, e-mail and other forms of communication; and

Territorial privacy, which concerns the setting of limits on intrusion into the domestic and other environments such as the workplace or public space. This includes searches, video surveillance and ID checks.

Privacy at common law

It is unclear if a tort of invasion of privacy exists under Australian law. The ALRC summarised the position in 2007:

In Australia, no jurisdiction has enshrined in legislation a cause of action for invasion of privacy; however, the door to the development of such a cause of action at common law has been left open by the High Court in *Australian Broadcasting Corporation v Lenah Game Meats Pty Ltd* (Lenah Game Meats). To date, two lower courts have held that such a cause of action is part of the common law of Australia. ...

At common law, the major obstacle to the recognition in Australia of a right to privacy was, before 2001, the 1937 High Court decision in *Victoria Park Racing & Recreation Grounds Co Ltd v Taylor* (Victoria Park). In a subsequent decision, the High Court in *Lenah Game Meats* indicated clearly that the decision in *Victoria Park* 'does not stand in the path of the development of ... a cause of action (for invasion of privacy)'. The elements of such a cause of

action – and whether the cause of action is to be left to the common law tradition of incremental development or provided for in legislation – remain open questions.

However, in 2008, the Court of Appeal of the Supreme Court of Victoria held "damages should be available for breach of confidence occasioning distress, either as equitable compensation, or under Lord Cairns' Act." This is a reference to the equitable doctrine of breach of confidence, which is different from a tort of invasion of privacy, although it has some applications to situations where one's privacy has been invaded.

In 2013, Attorney-General of Australia Mark Dreyfus QC MP again referred the issue of privacy to the ALRC. Its terms of reference included a detailed legal design of a statutory cause of action for serious invasions of privacy, and to consider the appropriateness of any other legal remedies to redress for serious invasions of privacy. The final report, *Serious Invasions of Privacy in the Digital Era* (ALRC Report 123), was tabled in September 2014, after there had been a change of government. There has not been a formal response from the Australian government.

Postal confidentiality

Since at least the 19th century, it has been the practice to enclose mail in an envelope to prevent infringement of confidentiality. The unauthorised interception of mail of another is a criminal offence.

Telecommunications privacy

Telecommunications (Interception and Access) Act 1979

An Attorney-General discussion paper notes:

"The primary objective of the current legislation governing access to communications is to protect the privacy of users of telecommunications services in Australia by prohibiting covert

access to communications except as authorised in the circumstances set out in the Telecommunications (Interception and Access) Act 1979."

Telecommunications (Interception and Access) Amendment (Data Retention) Act 2015

On 26 March 2015 both Houses of Parliament passed the Telecommunications (Interception and Access) Amendment (Data Retention) Act 2015, which received royal assent on 13 April 2015.

The Act implements recommendations of the Parliamentary Joint Committee on Intelligence and Security (PJCIS) Report of the Inquiry into Potential Reforms of Australia's National Security Legislation by amending the Telecommunications (Interception and Access) Act 1979 to:

require telecommunications service providers to retain for two years telecommunications data (not content) prescribed by regulations;

provide for a review by the PJCIS of the mandatory data retention scheme no more than three years after the end of its implementation phase;

limit the range of agencies that are able to access telecommunications data and stored communications;

provide for record-keeping and reporting the use of, and access to, telecommunications data; and

require the Commonwealth Ombudsman to inspect and oversight these records for compliance, and Telecommunications Act 1997 to make consequential amendments.

2025 Reform

The reform was achieved through the Privacy and Other Legislation Amendment Act 2024(cth), which amended the Privacy Act 1988(cth) to include a new statutory tort. While

many amendments in the Act took effect upon royal assent in late 2024, the statutory cause of action for serious invasions of privacy commenced on 10 June 2025.

This change implements long-standing recommendations, including from the Australian Law Reform Commission's 2014 report "Serious Invasions of Privacy in the Digital Era", which proposed creating a dedicated statutory cause of action for privacy invasions. Under the statutory cause of action, an individual may have a cause of action against another person if: The defendant invaded the plaintiff's privacy by intruding upon the plaintiff's seclusion or misusing information that relates to the plaintiff.

A person in the plaintiff's position would have had a reasonable expectation of privacy in all the circumstances.

The invasion was intentional or reckless.

The invasion was serious.

The public interest in protecting privacy outweighs any countervailing public interest.

No proof of damage is required for the cause of action to arise.

Proceedings must generally be commenced within 1 year after the plaintiff became aware of the invasion or within 3 years after it occurred. If the person whose privacy was invaded is under the age of 18, they don't have to start proceedings right away. Instead, they have until their 21st birthday to file a claim.

A range of defences and exemptions applies, including consent, lawful authority, and exemptions for certain categories of entities such as intelligence and law enforcement bodies.

Australian privacy laws

Commonwealth

Privacy Act 1988

Telecommunications Act 1997

National Health Act 1953

Data-matching Program (Assistance and Tax) Act 1990

Crimes Act 1914

Anti-Money Laundering and Counter-Terrorism Financing Act 2006

The Healthcare Identifiers Act 2010

Personally Controlled Electronic Health Records Act 2012

Telecommunications (Interception and Access) Amendment (Data Retention) Act 2015

New South Wales

Privacy and Personal Information Protection Act 1998

Health Records and Information Privacy Act 2002

Freedom of Information Act 1989 (Repealed)

State Records Act 1998

Criminal Records Act 1991

Surveillance Devices Act 2007

Workplace Surveillance Act 2005

Telecommunications (Interception and Access) (New South Wales) Act 1987

Access to Neighbouring Land Act 2000

Crimes (Forensic Procedures) Act 2000

Victoria

Privacy and Data Protection Act 2014

Health Records Act 2001

The Charter of Human Rights and Responsibilities Act 2006

Freedom of Information Act 1982

Public Records Act 1973

Surveillance Devices Act 1999

Telecommunications (Interception) (State Provisions) Act 1988

Queensland

Human Rights Act 2019

Public Interest Disclosure Act 2010

Information Privacy Act 2009

Right to Information Act 2009

Public Records Act 2002

Police Powers and Responsibilities Act 2000

Criminal Law (Rehabilitation of Offenders) Act 1986

Invasion of Privacy Act 1971

Private Employment Agents (Code of Conduct) Regulation 2005

South Australia

Freedom of Information Act 1991

State Records Act 1997

Surveillance Devices Act 2016

Listening and Surveillance Devices Act 1972

Telecommunications (Interception) Act 1988

Western Australia

Freedom of Information Act 1992

Health Services (Conciliation and Review) Act 1995

State Records Act 2000

Spent Convictions Act 1988

Surveillance Devices Act 1998

Telecommunications (Interception) Western Australia Act 1996

Tasmania

Personal Information Protection Act 2004

Right to Information Act 2009

Archives Act 1983

Annulled Convictions Act 2003

Listening Devices Act 1991

Telecommunications (Interception) Tasmania Act 1999

Northern Territory

Information Act 2002

Criminal Records (Spent Convictions) Act 1992

Surveillance Devices Act 2007

Telecommunications (Interception) Northern Territory Act 2001

Australian Capital Territory

Privacy Act 1988 (Cth)

Australian Capital Territory Government Service (Consequential Provisions) Act 1994 (Cth)

Health Records (Privacy and Access) Act 1997

Human Rights Act 2004

Freedom of Information Act 1989

Territory Records Act 2002

Spent Convictions Act 2000

Listening Devices Act 1992

See also

Expectation of privacy

Privacy law

Information privacy

Online Safety Amendment The introduction of identification-based age checks on social media.

Mass surveillance in Australia

References

External links

Government agencies administering privacy laws

Australian Government:

Office of the Australian Information Commissioner

New South Wales:

Office of the Privacy Commissioner

Victoria:

Privacy Victoria

Office of the Health Services Commissioner

Victorian Equal Opportunity & Human Rights Commission

Queensland:

Office of the Information Commissioner

Health Quality and Complaints Commission

South Australia:

Privacy Committee of South Australia

Department of Health

Western Australia:

Office of the Information Commissioner

Ombudsman Western Australia

Tasmania:

Ombudsman Tasmania

Office of egovernment

Australian Capital Territory:

Human Rights Commissioner

Northern Territory:

Office of the Northern Territory Information Commissioner

Other Government websites and publications

Telecommunications (Interception and Access) Amendment (Data Retention) Bill 2015

Australian Parliamentary Library

Civil and Human Rights: Privacy, Australian Parliamentary Library

The Australian Law Reform Commission has had two references concerning privacy law in Australia:

2006 – 2008

"For Your Information: Australian Privacy Law and Practice". [2008] Australian Law Reform Commission Report 108 (12 August 2008);

"Review of Privacy Reviewing Australia's Privacy Laws, Is Privacy passé? ... have your say" (PDF). [2006] Australian Law Reform Commission Issues Paper 31.

"Review of Privacy-Credit Reporting Provisions" (PDF). [2006] Australian Law Reform Commission Issues Paper 32.

1976 – 1983

"Privacy" (PDF). [1983] Australian Law Reform Commission Report 22

NSW Law Reform Commission landing page for the 2006 privacy reference (amended 2009).

World Legal Information Institute & Australasian Legal Information Institute

WorldLII - Australia - Privacy